

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

-----X

ERIC VASSELL, as Administrator of the Estate of
SAHEED NDALE VASSELL, and on behalf of his infant
child, T.V.,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM,
ANTHONY BOTTIGLIERE and OMAR RAFIQ,

Defendants.

-----X

Index #

Date of filing:

Plaintiffs designate Kings
County as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiffs reside at
826 Crown Street, Apt# D8
Brooklyn, New York 11213

County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER BEKIM MOLIC
c/o New York City Police Department- 71st
Precinct
421 Empire Boulevard
Brooklyn, New York 11225

POLICE OFFICER LEON DINGHAM
c/o New York City Police Department- 71st
Precinct
421 Empire Boulevard
Brooklyn, New York 11225

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Defendant's address:

POLICE OFFICER ANTHONY
BOTTIGLIERE
c/o New York City Police Department- 71st
Precinct
421 Empire Boulevard
Brooklyn, New York 11225

POLICE OFFICER OMAR RAFIQ
c/o New York City Police Department- 73rd
Precinct
1470 East New York Avenue
Brooklyn, New York 11212

Dated: Brooklyn, New York
April 4, 2019

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ERIC VASSELL, as Administrator of the Estate of
SAHEED NDALE VASSELL, and on behalf of his infant
child, T.V.,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM,
ANTHONY BOTTIGLIERE and OMAR RAFIQ,

Defendants.

-----X

The plaintiffs by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. That at the time of his death on April 4, 2018, and at all times hereinafter mentioned, plaintiff decedent, SAHEED NDALE VASSELL, was a resident of the County of Kings, City and State of New York.
2. The plaintiff, ERIC VASSELL, was the Father of the decedent, SAHEED NDALE VASSELL, and a resident of the County of Kings, City and State of New York.
3. The infant plaintiff, T.V., was the son of the decedent, SAHEED NDALE VASSELL, and a resident of the County of Kings, City and State of New York.
4. That prior to the commencement of this action, the plaintiff, ERIC VASSELL, was appointed as administrator for the Estate of SAHEED NDALE VASSELL, decedent, by Order of the Honorable John G. Ingram, Acting Judge, of the Kings County Surrogate's Court dated June 27, 2018.
5. That prior to the commencement of this action, the plaintiff, ERIC VASSELL, was appointed as guardian of the Property of the infant plaintiff, T.V., by Order of the Honorable John

G. Ingram, Acting Judge, of the Kings County Surrogate's Court dated May 15, 2018.

6. The cause of action herein alleged arose in the County of Kings, City and State of New York.

7. That the defendant, THE CITY OF NEW YORK, at all times hereinafter mentioned was a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

8. That the defendant THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

9. That prior hereto on May 31, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

10. That prior hereto on July 2, 2018, and within the time prescribed by law, a sworn Amended Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

11. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, ERIC VASSELL, was held on October 1, 2018.

12. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the infant plaintiff, T.V., was held on October 26, 2018.

13. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER BEKIM MOLIC, as an agent, servant and/or employee.

14. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER LEON DINGHAM, as an agent, servant and/or employee.

15. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed ANTHONY BOTTIGLIERE, as an agent, servant and/or employee.

16. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed OMAR RAFIQ, as an agent, servant and/or employee.

17. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, SAHEED NDALE VASSELL, was lawfully present at or about the area of the Utica Avenue and more specifically near or in front of the premises known as 414 Utica Avenue, in the County of Kings, City and State of New York.

18. That on or prior to April 4, 2018, the defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were aware that the decedent, SAHEED NDALE VASSELL, was an emotionally disturbed individual.

19. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, a telephone call was placed to the 911 system of the City of New York, regarding the decedent plaintiff, SAHEED NDALE VASSELL, an emotionally disturbed individual, lawfully present at or about the premises known as 414 Utica Avenue, in the County of Kings, City and State of New York.

20. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, a telephone call was received by the 911 emergency system of the City of New York, requesting assistance at or about the premises known as 414 Utica Avenue, in the County of Kings, City and State of New York, relating to the decedent plaintiff, SAHEED NDALE VASSELL, an emotionally disturbed individual.

21. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed a specifically trained unit of the New York City Police Department, known as the Emergency Services Unit.

22. That on April 4, 2018, and for sometime prior thereto, the emergency services unit of the New York City Police Department, were trained to handle situations relating to emotionally disturbed individuals.

23. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were not assigned to the emergency services unit of the New York City Police Department.

24. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were not trained with proper techniques when responding to a request for assistance in situations dealing with an emotionally disturbed individual.

25. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were dispatched to and arrived at the aforementioned premises to respond to the call requesting assistance relating to an emotionally disturbed person.

26. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were not properly trained to provide assistance and/or respond to calls requiring assistance relating to emotionally disturbed individuals.

27. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, responded to a call requesting

assistance with an emotionally disturbed individual at the aforementioned premises where the emotionally disturbed individual was the decedent plaintiff, SAHEED NDALE VASSELL.

28. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, SAHEED NDALE VASSELL, was assaulted, battered, shot several times by a firearm or service weapon by the defendants NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, while acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

29. The decedent plaintiff, SAHEED NDALE VASSELL, was transported to Kings County Hospital for medical treatment where he was pronounced dead as a result of multiple shots by firearms or service weapons used by the defendants, NEW YORK POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE AND OMAR RAFIQ, at the aforementioned location.

30. That prior to April 4, 2018, the decedent plaintiff, SAHEED NDALE VASSELL, was diagnosed with bipolar disorder and this mental illness was known to the defendants.

31. Prior to April 4, 2018, the decedent plaintiff, SAHEED NDALE VASSELL, was known to the defendants and the local residents as an emotional disturbed individual who was harmless.

32. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed without reason or provocation.

33. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed without probable cause.

34. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed knowingly, intentionally and willfully.

35. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed negligently and recklessly.

36. The aforementioned discharge of a firearm and/or service weapon resulted in the death of the decedent plaintiff, SAHEED NDALE VASSELL.

37. The discharge of the firearm by the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, was outside the scope of tactics and/or actions that a reasonably prudent and properly trained police officer should have used under the circumstances.

38. That the actions of the 911 operator in transmitting information to the police officers was done in a negligent, reckless and careless manner.

39. That on April 4, 2018, the actions of the 911 call center and 911 operator when relating information about the emergency 911 call to the police officers was done in a negligent reckless and careless manner.

40. That on April 4, 2018 the negligent actions of the 911 call center created a situation of **“more heightened tension”** in transmitting the call as a “firearm job” when it was not.

41. That on April 4, 2018 the negligent actions of the 911 operator created a dangerous, more heightened tension so as to create a more dangerous and “trigger happy” situation that the New York City Police Department was placed under when responding to the scene.

42. That on April 4, 2018, the negligent action of the defendant, THE CITY OF NEW YORK, and defendant’s agent/servant/employee operator at the 911 call center caused a situation which contributed or caused the death of the decedent plaintiff, SAHEED NDALE VASSELL.

43. At no time during the events described above or as the events occurred did the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, have probable cause to use and discharge their firearm and/or service weapon upon the decedent plaintiff, SAHEED NDALE VASSELL.

44. The actions of defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, are liable under the doctrine of respondeat superior.

45. The actions of the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, is responsible for and the events occurred in a negligent, careless and reckless manner so as to result in the death of the decedent plaintiff, SAHEED NDALE VASSELL.

46. By reason of the foregoing, the decedent plaintiff, SAHEED NDALE VASSELL, was caused to suffer severe physical injuries and pain and suffering including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FOR ASSAULT AND
BATTERY WITH A DEADLY WEAPON ON BEHALF ERIC VASSELL, AS
ADMINISTRATOR OF THE ESTATE OF SAHEED NDALE VASSELL,
AND ON BEHALF OF HIS INFANT CHILD, T.V.**

47. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "46" herein, as though more fully set forth herein at length.

48. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, SAHEED NDALE VASSELL, was lawfully present at or about the premises known as 414 Utica Avenue, in the County of Kings, City and State of New York.

49. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, responded to calls made to 911 call center, based upon improper or poorly transmitted information from the 911 operators to the responding police officers.

50. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, arrived at the aforementioned location responding to the 911 calls requesting assistance with the decedent plaintiff, SAHEED

NDALE VASSELL, an emotionally disturbed individual.

51. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, SAHEED NDALE VASSELL, was assaulted, battered, shot several times by a firearm or service weapon by the defendants NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, while acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

52. The decedent plaintiff, SAHEED NDALE VASSELL, was transported to Kings County Hospital to seek medical treatment where he was pronounced dead as a result of multiple shots by firearms or service weapons used by the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, at the aforementioned location.

53. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed without reason or provocation.

54. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed without probable cause.

55. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed knowingly, intentionally and willfully.

56. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed negligently and recklessly.

57. The aforementioned discharge of a firearm and/or service weapon resulted in the death of the decedent plaintiff, SAHEED NDALE VASSELL.

58. The discharge of the firearm by the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, was outside the scope of tactics and/or actions that a reasonably prudent and properly trained police officer should have used under the circumstances.

59. At no time during the events described above or as the events occurred did the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, have probable cause to use and discharge their firearm and/or service weapon upon the decedent plaintiff, SAHEED NDALE VASSELL.

60. The actions of defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, are liable under the doctrine of respondeat superior.

61. The actions of the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, and the 911 operators were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, is responsible for and the events occurred in a negligent, careless and reckless manner so as to result in the death of the decedent plaintiff, SAHEED NDALE VASSELL.

62. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child, T.V., demands judgment for assault and battery with a deadly weapon against the defendant, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR WRONGFUL
DEATH ON BEHALF OF BEHALF ERIC VASSELL, AS
ADMINISTRATOR OF THE ESTATE OF SAHEED NDALE VASSELL,
AND ON BEHALF OF HIS INFANT CHILD, T.V.**

63. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this Complaint designated as "1" through "62" herein, as though more fully set forth herein at length.

64. That on April 4, 2018, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, SAHEED NDALE VASSELL, was lawfully present at the aforesaid location when he was assaulted, battered, shot multiple times by a firearm/service weapon which resulted in his death by defendants, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, while acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

65. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed without reason or provocation.

66. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed without probable cause.

67. The aforementioned assault, battery and shooting of the decedent plaintiff, SAHEED NDALE VASSELL, was performed knowingly, intentionally and willfully.

68. The aforementioned assault, battery, discharge of a firearm and/or service weapon resulted in the death of the decedent plaintiff, SAHEED NDALE VASSELL.

69. That at all times hereinafter mentioned, defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, engaged in the actions and conduct alleged herein in their official capacity as New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

70. That the aforementioned wrongful death of the decedent plaintiff, SAHEED NDALE VASSELL, was caused due to the negligence, carelessness and recklessness of the defendants in the actions they engaged while employed as police officers as well as the negligence, careless actions of the 911 operators responding to a call requiring assistance with an emotionally disturbed individual and negligently providing information to responding police officers.

71. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child, T.V., demands

judgment for wrongful death against the defendant, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE
ON BEHALF OF ERIC VASSELL, AS ADMINISTRATOR OF
THE ESTATE OF SAHEED NDALE VASSELL, AND
ON BEHALF OF HIS INFANT CHILD, T.V.**

72. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this Complaint designated as "1" through "71" herein, as though more fully set forth herein at length.

73. That said incident and the injuries resulting therefrom were caused solely by the negligence, carelessness, and recklessness of defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, both directly and vicariously.

74. That on April 4, 2018 and for sometime prior to the City of New York and the New York City Police Department, had in place procedures and protocol to be used and followed when the 911 call system received a telephone call requesting assistance with an emotionally disturbed person.

75. That on April 4, 2018, the City of New York and the New York City Police Department, received a call requesting assistance at 414 Utica Avenue, in the County of Kings, City and State of New York, relating to an emotionally disturbed person.

76. That on April 4, 2018, the City of New York and/or the New York City Police Department, were under a duty to follow the proper procedures and protocol then in place relating to and responding to a request for assistance relating to an emotionally disturbed person.

77. That on April 4, 2018, the defendants were negligent, reckless and careless relating to their response to a request seeking assistance for an emotionally disturbed person at 414 Utica Avenue, in the County of Kings, City and State of New York.

78. Such negligence consisted of failing to have properly trained police officers respond to a call requesting assistance for an emotionally disturbed individual; such negligence consisted of improperly transmitting information to the responding police officers so as to create a more tense situation; failing to properly and timely dispatch members of the Emergency Services Unit of the New York City Police Department to the call requesting assistance with an emotionally disturbed individual; failing to follow proper guidelines, procedures and protocol in responding to a request for assistance with an emotionally disturbed individual; such negligence consisted of negligence in training, hiring, supervision and retention of the police officers and 911 operators involved in this incident; in failing to properly train police officers in the use and the discharge of a firearm and/or service weapon and negligently training 911 operators so as to improperly transmitting information and job description; in failing to observe the existing police department protocols for police officers designed to govern the use of deadly lethal force and the use of a firearm and/or service weapon causing serious injuries both physical and emotional resulting in death, conscious pain and suffering, pre impact terror arising and resulting from the use of a firearm and/or service weapon on the plaintiff and further; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers; failing to properly investigate their background; in failing to train and instruct police officers, especially regarding the use and abuse of power while in the field; improperly supervised police officers in the field; failing to properly supervise the officers in the field, including the officers, the staff, administration and processing of persons suspected of violating laws of this State which allowed the death of the decedent plaintiff, SAHEED NDALE VASSELL.

79. That the defendant, THE CITY OF NEW YORK NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to NEW YORK

CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, were negligent, reckless and careless in shooting the decedent plaintiff, SAHEED NDALE VASSELL.

80. As the result of said negligence, the decedent plaintiff, SAHEED NDALE VASSELL, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror.

81. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child, T.V., demands judgment for negligence against the defendant, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING AND RETENTION ON BEHALF OF ERIC VASSELL, AS
ADMINISTRATOR OF THE ESTATE OF SAHEED NDALE VASSELL, AND
ON BEHALF OF HIS INFANT CHILD, TYSHAWN VASSELL**

82. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "81" herein, as though more fully set forth herein at length.

83. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, who assaulted, battered, and discharged a firearm and/or service weapon upon the decedent plaintiff, SAHEED NDALE VASSELL, who suffered injuries which ultimately led to his death.

84. The defendant, THE CITY OF NEW YORK, did not exercise reasonable care in the training of their agents/servants and/or employees 911 call operators and was further negligent in the training of 911 call operators.

85. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, who assaulted, battered, and discharged a firearm and/or service weapon upon the decedent plaintiff, SAHEED NDALE VASSELL, who suffered injuries which ultimately led to his death.

86. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct and training of the defendants, NEW YORK POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, and 911 call operators and continued to employ them and allowed them to be in contact with the public at large.

87. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child, TYSHAWN VASSELL, demands judgment for negligent hiring, training and retention against the defendant, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF ERIC VASSELL, AS ADMINISTRATOR
OF THE ESTATE OF SAHEED NDALE VASSELL, AND
ON BEHALF OF HIS INFANT CHILD, T.V.**

88. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this Complaint designated as "1" through "87" herein, as though more fully set forth herein at length.

89. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by the decedent plaintiff. SAHEED NDALE VASSELL.

90. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

91. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

92. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

93. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

94. As a direct and proximate result of this unlawful conduct, the decedent plaintiff, SAHEED NDALE VASSELL, sustained the damages hereinbefore alleged.

95. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child, T.V., demands judgment for civil rights against the defendant, THE CITY OF NEW YORK, including, but not

limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
ON BEHALF OF ERIC VASSELL, AS ADMINISTRATOR OF
THE ESTATE OF SAHEED NDALE VASSELL,
AND ON BEHALF OF HIS INFANT CHILD, T.V.**

96. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this Complaint designated as "1" through "95" herein, as though more fully set forth herein at length.

97. The actions of the defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, herein-above alleged, were malicious, willful and grossly negligent.

98. The defendants, NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, committed the unlawful and negligent acts herein-above alleged, after the discharge a firearm and/or service weapon on the decedent plaintiff, SAHEED NDALE VASSELL, which ultimately led to his death.

99. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child, T.V., demands judgment for punitive damages against the defendant, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF ERIC VASSELL, AS
ADMINISTRATOR OF THE ESTATE OF SAHEED NDALE VASSELL**

100. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through

"99" herein, as though more fully set forth herein at length.

101. That at all times hereinafter mentioned, the plaintiff, ERIC VASSELL, was the Father and Natural Guardian of the decedent plaintiff, SAHEED NDALE VASSELL, and as such plaintiff, ERIC VASSELL, was entitled to the society and services of the decedent plaintiff, SAHEED NDALE VASSELL.

102. By reason of the aforementioned negligence and intentional acts of the defendants, the plaintiff, ERIC VASSELL, was deprived of the society and services of the decedent plaintiff, SAHEED NDALE VASSELL, and shall forever be deprived of said society and services.

103. As a result of the aforementioned negligence and intentional acts, the plaintiff, ERIC VASSELL, has expended diverse sums of money in payment of the expenses incurred for the decedent plaintiff, SAHEED NDALE VASSELL.

104. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, demands judgment for loss of services against the defendant, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR LOSS OF
SERVICES ON BEHALF OF T.V., INFANT
CHILD OF THE DECEDENT, SAHEED NDALE VASSELL**

105. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this Complaint designated as "1" through "104" herein, as though more fully set forth herein at length.

106. That at all times hereinafter mentioned, the plaintiff, T.V., was the son of the decedent plaintiff, SAHEED NDALE VASSELL, and as such plaintiff, T.V., was entitled to the services, society, comfort and affection of the decedent, plaintiff, SAHEED NDALE VASSELL.

107. By reason of the afore-described negligence and intentional acts of the defendants, the infant plaintiff, T.V., was deprived of the society and services of his father, the decedent

plaintiff, SAHEED NDALE VASSELL, and shall forever be deprived of said society and services.

108. As a result of the defendants' negligence and intentional acts resulting in the decedent plaintiff, SAHEED NDALE VASSELL, the plaintiff, T.V., has been deprived of the services, society and support of his father forever, the decedent plaintiff, SAHEED NDALE VASSELL.

109. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, demands judgment for loss of services, society, comfort, affection of the decedent plaintiff, SAHEED NDALE VASSELL, on behalf of the infant plaintiff, T.V., against the defendants, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR LOSS
OF GUIDANCE ON BEHALF OF T.V., INFANT
CHILD OF THE DECEDENT, SAHEED NDALE VASSELL**

110. That at all times hereinafter mentioned, the plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of this Complaint designated as "1" through "109" herein, as though more fully set forth herein at length.

111. At all times hereinafter mentioned, the infant plaintiff, T.V., was the child of the decedent plaintiff, SAHEED NDALE VASSELL, who provided support, maintenance parental nurture and care, and the physical, moral and intellectual training and guidance prior to this occurrence.

112. As a result of the defendants' negligence and intentional acts, the infant plaintiff, T.V., has been deprived of the support, maintenance, parental nurture and care, the physical, moral and intellectual training and guidance of his father forever, the decedent plaintiff, SAHEED NDALE VASSELL.

113. By reason of the foregoing, the plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, demands judgment for loss of guidance, support, maintenance parental nurture and care, and the physical, moral and intellectual training of the

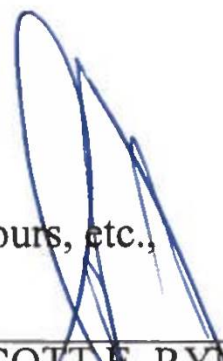
decedent plaintiff, SAHEED NDALE VASSELL, on behalf of the infant plaintiff, T.V., against the defendants, THE CITY OF NEW YORK, including, but not limited to NEW YORK CITY POLICE OFFICERS BEKIM MOLIC, LEON DINGHAM, ANTHONY BOTTIGLIERE and OMAR RAFIQ, in a sum exceeding the jurisdictional limits of all the lower courts.

WHEREFORE, plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child , T.V., for **assault and battery** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause** of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child , T.V., for **wrongful death** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause** of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child , T.V., for **negligence** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Third Cause** of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child , T.V., for **negligent hiring and retention** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth Cause** of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child , T.V., for **civil rights violation** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth Cause** of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, and on behalf of his infant child , T.V., for **punitive damages** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth Cause** of Action; plaintiff, plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, deceased, for **loss of services**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh Cause** of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAHEED NDALE VASSELL, for **loss of services, society, comfort, affection** of the decedent plaintiff, SAHEED NDALE VASSELL, on behalf of the infant plaintiff, T.V., judgment both compensatory and exemplary in an amount

exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, ERIC VASSELL, as Administrator of the Estate of SAAHEED NDALE VASSELL, for loss of guidance, support, maintenance parental nurture and care, and the physical, moral and intellectual training of the decedent plaintiff, SAAHEED NDALE VASSELL, on behalf of the infant plaintiff, T.V., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
April 4, 2019

Yours, etc.,



SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 18VS04-04

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

ERIC VASSELL, being duly sworn, deposes and says, that deponent is the Administrator of the Estate of SAAHEED NDALE VASSELL, and on behalf of his infant child , T.V., in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



ERIC VASSELL

Sworn to before me this 2nd
day of April, 2019


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23